

Calendar line 1**Case Name: Estate of Christopher Hansell****Case No.: 23PR195130****INTRODUCTION**

Petitioner Rodric Hansell (“Petitioner”) initiated this case by filing a petition for letters of administration seeking to be named administrator for his brother Christopher Hansell’s (“Decedent”) intestate estate. Objector Charel Faith Hansell Winston (“Objector”), Decedent’s sister, opposed the petition. Objector also filed a competing petition for letters of administration.

Currently before the court is Petitioner’s motion to compel initial, objection-free responses to his discovery requests. Objector did not file an opposition and the time in which to do so has passed.

BACKGROUND

On April 5, 2024, Petitioner served Objector with his first set of form interrogatories, special interrogatories, and requests for production. The responses were due 30 days later. When Petitioner did not receive responses, his counsel sent a meet and confer email on May 15, 2024. Objector responded stating, in pertinent part, “I have just received your request for discovery responses via email at [email address]. Please take note that I did not receive your discovery request form. I have requested on numerous occasions, as you may recall, that you send all court correspondence and requests via email.” (Declaration of Mary E. MacLellan (“MacLellan Decl.”), Ex. A.) Objector also suggested that she received an accommodation from the court pursuant to the Americans With Disabilities Act that would excuse her from responding.¹ Thereafter, Petitioner sent a second meet and confer email but, as of the time of filing, no responses had been received. Petitioner filed the instant motion on May 31, 2024.

DISCUSSION

Petitioner seeks initial responses to his first set of form and special interrogatories and requests for production of documents. “Unlike a motion to compel further responses, a motion to compel responses is not subject to a 45-day time limit . . .” (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404 (*Sinaiko*)). There is no meet and confer requirement or time limit for bringing a motion to compel initial discovery responses, and the moving party need only show that the discovery was properly served and a timely response was not provided. (See Code Civ. Proc. §§ 2030.290, subd. (b) [interrogatories]; 2031.300 [requests for production of documents]; *Sinaiko, supra*, 148 Cal.App.4th at pp. 410-411; *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.)² No separate statement is required. (Cal. Rules of Court, rule 3.1345(b).)

¹ The court’s orders on Objector’s accommodation requests merely continued hearings, they made no reference to Objector’s discovery obligations.

² All further undesignated statutory references are to the Code of Civil Procedure.

Generally, when a party has failed to timely provide initial responses to the discovery requests at issue, he or she has waived any objection to them. (§§ 2030.290, subd. (a) [A party who fails to serve timely responses to interrogatories waives any objections to the requests, including those based on privilege or the work product doctrine.]; 2031.300, subd. (a) [a party who fails to serve timely responses to a request for production or inspection of documents “waives ‘any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010).”]; 2033.280, subd. (a) [A party who fails to serve timely responses to a request for admissions waives any objections to the requests, including those based on privilege or the work product doctrine. see also *Scottsdale Ins. Co. v. Super. Ct.* (1997) 59 Cal.App.4th 263, 273 [waiver occurs where the responding party fails to timely raise an objection in its initial response]; *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125.)

Objector has not moved for relief from waiver. (See §§ 2031.300, subd. (a) [requests for production]; 2030.290, subd. (a) [interrogatories].)³ There is no evidence that Objector has provided responses prior to the hearing on this matter.

The evidence demonstrates that Petitioner properly served the discovery requests. Petitioner’s counsel declares that she served the discovery requests on Objector at 10741 N. Wolfe Rd., Cupertino, CA 95014, the same address Objector used on her objection and other filings with the court, both before and after the motion was filed. (See MacLellan Decl., p. 8:8-10.) Objector has not updated her address with the court and she did not contend in her meet and confer response that the address was incorrect. Additionally, although she stated in meet and confer that she asked Petitioner’s counsel to serve her via email, no consent to email service form (form EFS-005-CV) has been filed with the court. (See § 1010.6, subd. (c)(2) & (c)(3) [an unrepresented person may consent to electronic service by serving a consent form on all parties and filing it with the court or “[m]anifesting affirmative consent through electronic means with the court or the court’s electronic filing service provider, and concurrently providing the party’s electronic address with that consent for the purpose of receiving electronic service.”].) Moreover, though Objector indicates that she did not receive the discovery requests, they were attached to the motion itself, which was served on her via both mail and email. (See Proof of Service filed May 31, 2024.) Objector has also not opposed the motion. The failure to file a written opposition “‘creates an inference that the motion or demurrer is meritorious.’” *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410. Accordingly, the motion is GRANTED. Objector is ordered to serve on Petitioner’s counsel objection-free, code-compliant responses to Petitioner’s first set of form and special

³ Section 2030.290, subdivision (a) provides: “The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240. [¶] (2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.” Section 2031.300, subdivision (a) provides: “The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied: [¶] (1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280. [¶] (2) The party’s failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.”

interrogatories and requests for production of documents within 20 days of service of the date of the court's order.

In connection with the motion to compel, Petitioner requests sanctions in the amount of \$3,000. The California Civil Discovery Act provides for sanctions when a party makes or opposes a motion to compel a response unless the court finds that the party subject to sanction acted with substantial justification or that circumstances would render the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories]; 2031.300, subd. (c) [requests for production].) Objector has not opposed the motion and, therefore, she has provided no reason to believe she acted with substantial justification or that the imposition of sanctions would be unjust. The amount of sanctions requested must be supported by a declaration (CCP § 2023.040) and Petitioner has failed to state how many hours were spent, the hourly rate, or any other specifics to justify the request for \$3,000. Under CCP § 2023.050, where a party fails to respond in good faith, a court "shall impose a one-thousand-dollar (\$1,000) sanction, payable to the requesting party." Thus, Petitioner's request for sanctions is GRANTED in the amount of \$1,000. Objector is ordered to pay to Petitioner's counsel \$1,000 within 20 days of service of the court's order.

CONCLUSION

The motion to compel is GRANTED. Objector is ordered to serve on Petitioner's counsel objection-free, code-compliant responses to Petitioner's first set of form and special interrogatories and requests for production of documents within 20 days of service of the court's order. Petitioner's request for sanctions is GRANTED IN PART. Petitioner shall submit the final order within 10 days of the hearing and must serve the final order on Objector both by mail and by email. Objector is ordered to pay to Petitioner's counsel \$1,000 within 20 days of service of the court's order.

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Calendar Line 2

Case Name: *FPP MB, LLC v. Jennifer Lewis et al. (and related cross-actions)*

Case No.: 24CV433325 (consolidated with: 24CV435042, 24CV435259, and 24CV435600)

I. Background

On March 18, 2024, plaintiff FPP MB, LLC (“FPP”) filed its complaint. On May 31, 2024, the Court consolidated this matter with three other actions. On June 11, 2024, FPP amended its complaint (“FAC”) to include allegations related to the HOA’s authority to foreclose on FPP’s 179 units.

On July 26, 2024, defendants Jennifer Lewis and Lynette Mandal (“Defendants”) filed a demurrer and motion to strike the FAC. The hearing on the motions was scheduled for October 24, 2024. Oppositions to the motions were due by October 13, 2024.

On October 22, 2024, FPP filed its Request for Dismissal of the 24CV433325 matter.⁴ On October 23, 2024, FPP sent an email to the clerk of court with respect to filing the dismissal. This was the same day the Court issued its tentative ruling sustaining without leave to amend Defendants’ demurrer. Both the demurrer and motion to strike went unopposed by FPP. Additionally, FPP did not contest the tentative ruling or appear at the hearing on the motion and so the tentative ruling was adopted. (See November 4, 2024 Order on Demurrer, p. 1:25.)

Currently before the Court is FPP’s motion for order to revoke prior court order, pursuant to Code of Civil Procedure section 1008, subdivision (a). Thus, the Court will treat this motion as one for reconsideration. Defendants timely opposed the motion. FPP did not file a reply.⁵

II. Legal Standard

“[Code of Civil Procedure] Section 1008 represents the Legislature’s attempt to regulate what the Supreme Court has referred to as ‘repetitive motions.’” (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 885, disapproved on other grounds in *Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830.) Section 1008, subdivision (a) requires that any such motion be: (1) filed within 10 days after service upon the party of written notice of entry of the order of which reconsideration is sought, (2) supported by new or additional facts, circumstances or law, and (3) accompanied by an affidavit detailing the circumstances of the first motion and the respects in which the new motion differs from it. (*Ibid.*)

⁴ The dismissal was not processed by the clerk’s office until October 25, 2024, the day after the hearing on the demurrer.

⁵ This motion was previously calendared for March 7, 2025 in Department 16. It was moved to Department 2’s March 17, 2025 calendar to be heard by Hon. Judge Rosen as required by Code of Civil Procedure section 1008, subdivision (a) [any party affected by an order may “make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.”].